

		Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant is to file a responsive pleading consistent with California Code of Civil Procedure § 1170 (a) within 5 calendar days of receiving notice of the Court's ruling. The Court Clerk is to provide notice of the Court's ruling.
11	30-2026-01585175 Park Newport LP vs. Anderson	The Court has read and considered the Defendant's Motion to Quash Service (ROA 10). The Court takes Judicial Notice of the Answer to the Complaint (ROA 7) and Application to Serve Summons by Posting (ROA 16). Plaintiff has not asserted proper service of the Summons and Complaint, in ROA 16 in the Declaration of Diligence the process server indicates leaving a courtesy copy at the premises on July 22, 2026. The Motion to Quash Service is granted; Plaintiff is ordered to re-serve notice on Uniah Anderson. The Court Clerk is to provide notice of the Court's ruling.
14	30-2026-01542411 Soad Khalil, Trustee vs. Brown	The Court has read and considered the Defendant's Motion to Quash Subpoena and Request for Monetary Sanctions (ROA 139), Plaintiff's Opposition (ROA 127), Declaration of Craig P. Fagan (ROA 133) and Reply to Opposition (ROA 143). In 1988, the 6th District Court of Appeal quoted a previous decision of the 8th District regarding the issue of deposing opposing counsel: "Taking the deposition of opposing counsel not only disrupts the adversarial system and lowers the standard of the profession, but it also adds to the already burdensome time and costs of litigation. It is not hard to imagine additional pretrial delays to resolve work-product and attorney-client objections, as well as delays to resolve collateral issues raised by the attorney's testimony. Finally, the practice of deposing opposing counsel detracts from the quality of client representation. Counsel should be free to devote his or her time and efforts to preparing the client's case without fear of being interrogated by his or her opponent. Moreover, the 'chilling effect' that such practice will have on the truthful communications from the client to the attorney is obvious. [para.] We do not hold that opposing trial counsel is absolutely immune from being deposed. We recognize that circumstances may arise in which the court should order the taking of opposing counsel's deposition. But those circumstances should be limited to where the party seeking to take the deposition has shown that (1) no other means exist to obtain the information than to depose opposing counsel, [citation]; (2) the information sought is relevant and nonprivileged; and (3) the information is crucial to the preparation of the case. (<i>Shelton v. American Motors Corp.</i> (8th Cir. 1986) 805 F.2d 1323, 1327.)" (<i>Spectra-Physics, Inc. v. Superior Court</i> (1988) 198 Cal.App.3d 1487, 1494-1495.) Here, Plaintiff's counsel is seeking to have the Defendant's counsel testify as to an email in which the only people on the email are both counsel for the

	Defendant and Mr. Silverstein, the Plaintiff's previously retained counsel. The Court finds that the information in the email which is being sought through the testimony of Mr. Wilens is relevant and not a privileged communication. Mr. Fagan asserts that the email is a crucial element of the Plaintiff's case as it shows that the Defendant and his counsel received that lease addendum, and from the Plaintiff's perspective of the case, this addendum addresses the assertion by the Defendant regarding the issue raised as to Civil Code 1946.2. Based on the Plaintiff's asserted theory of the case, the Court finds that the existence and contents of the email are crucial to the preparation of the case. The last element in the Court's analysis is whether there are other means to obtain the information other than to have opposing counsel testify. Mr. Fagan asserts that there were multiple discussions between counsel regarding trying to stipulate to the foundation for the email to be entered into evidence prior to the issuance of the subpoena but that the Defendant refused to stipulate to the foundation of the email. A process server cannot authenticate an email; the process server would only be able to testify about the delivery of the addendum in question. As there are only three people on the email, two of whom are the Defendant's attorneys, that would only leave subpoenaing the Plaintiff's former counsel, Mr. Silverstein, to testify to authenticate the email so that there is the foundation necessary to enter it into evidence. The Court would like to hear argument from counsel addressing the issue of Mr. Silverstein being a witness, as it raises some of the same fundamental issues, including whether there would be a waiver of attorney-client privilege by calling his former counsel to testify.
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